entitled to the produce of the property, in its converted form, from the time of the conversion, as if land be directed to be sold, and the produce invested in Government or real securities (*g*), or money be directed to be laid out on land (*h*), the tenant for life is entitled to the dividends or interest in the first case, from the time of the sale and investment, and to the rents in the latter case from the time of the purchase, though made in the course of the first year.

(δ) **Where the funds are not at the testator's death in the state they ought to be.** — Where, at the death of the testator, the property is not in the state in which it is directed to be, the tenant for life is, before * the conversion, [*303] entitled, as the Court has now decided, not to the actual produce, but to a reasonable fruit of the property, from the death of the testator up to the time of the conversion, whether made in the course of the first year, or subsequently; as if personal estate be directed to be laid out in Government or real securities, and part of the personal estate consists of bonds, bank stock, &c. (not being Government or real securities), the tenant for life is entitled to the dividends *from the death of the testator on so much of* 3 *per cent. Consolidated Bank Annuities as such part of the personal estate, not being Government or real securities, would have purchased at the expiration of one year from the testator's death* (*a*).

(*g*) La Terriere *v.* Bulmer, 2 Sim. 18; Gibson *v.* Bott, 7 Ves. 89.

(*h*) See Angerstein *v.* Martin, T. & R. 240.

(*a*) Dimes *v.* Scott, 4 Russ. 195. In Douglas *v.* Congreve, 1 Keen, 410, the M. R. gave the tenant for life the actual interest of the personal estate making interest from the death of the testator until the end of one year; and in Robinson *v.* Robinson, 1 De G. M. & G. 247, the tenant for life was allowed 4 per cent. from the expiration of one year; but in the cases of Taylor *v.* Clark, 1 Hare, 161; Morgan *v.* Morgan, 14 Beav. 72; Holgate *v.* Jennings, 24 Beav. 623; Brown *v.* Gellatly, 2 L. R. Ch. App. 752; Allhusen *v.* Whittell, 4 L. R. Eq. 295; *Re* Llewellyn's Trust, 29 Beav. 171; Hume *v.* Richardson, 4 De G. F. & J. 29, the authority of Dimes *v.* Scott was followed; but in the last case (Hume *v.* Richardson), the Court gave the tenant for life the income of so much 3 per cent. Consolidated Bank Annuities as would have been purchased had the conversion been made at the *testator's death*, and not at the *expiration of one year from the testator's death*. In Allhusen *v.* Whittell, 4 L. R. Eq. 295, V. C. Wood considered the true principle to be, to ascertain what part of the testator's estate (including the income of such part during the first year from the testator's death) was required for the payment of funeral and testamentary expenses,